MUTUAL NON-DISCLOSURE AGREEMENT

Ref: VMG/KL/NDA/2023-003

This Mutual Non-Disclosure Agreement (the "Agreement") is entered into on 5 February 2023 (the "Effective Date") between **Veridian Manufacturing GmbH**, Industriestrasse 77, 60486 Frankfurt am Main, Germany ("Veridian") and **Kestrel Labs, Inc.**, a Delaware corporation with offices at 2200 Mission Street, Suite 400, San Francisco, CA 94110, USA ("Kestrel").

1. Purpose

The parties wish to explore a potential joint development of solid-state battery coating technology (the "Purpose") and may disclose Confidential Information to each other in connection with it.

2. Definition

"Confidential Information" means any non-public technical, commercial or financial information disclosed during the Disclosure Period that is marked confidential or that a reasonable person would understand to be confidential, including prototypes, formulations, process parameters and test data.

3. Disclosure Period

Disclosures may be made during the period of two (2) years from the Effective Date (the "Disclosure Period"), after which no further disclosures are contemplated unless the parties agree in a signed writing to extend it.

4. Obligations

The Recipient shall (a) use Confidential Information only for the Purpose; (b) protect it with at least the degree of care it uses for its own confidential information and no less than reasonable care; and (c) not disclose it to third parties except to its employees, Affiliates and professional advisers with a need to know who are bound by written confidentiality obligations.

5. Exclusions

The obligations do not apply to information that (a) is or becomes publicly available without breach; (b) was known to the Recipient before disclosure; (c) is received from a third party without restriction; or (d) is independently developed without use of Confidential Information.

6. Compelled disclosure

If required by law, court order or regulator to disclose Confidential Information, the Recipient shall (where lawful) give prompt written notice and disclose only the minimum required.

7. Term and survival

The Recipient's obligations of confidentiality continue for five (5) years from the expiry or termination of the Disclosure Period. Obligations in respect of any trade secret continue for as long as the information remains a trade secret under applicable law.

8. Return of materials

Within thirty (30) days of written request or expiry of the Disclosure Period, the Recipient shall return or destroy Confidential Information and certify destruction in writing, save for one archival copy held by legal counsel and electronic back-ups not readily accessible.

9. No licence; no obligation

No licence or other right is granted. Nothing obliges either party to enter into any further agreement. Any joint development will require a separate written agreement.

10. Non-solicitation

For twelve (12) months from the Effective Date neither party shall solicit for employment any employee of the other who was involved in the Purpose, except through general advertisements not targeted at such employees.

11. Residuals

Nothing in this Agreement prevents a party from using general knowledge, skills and experience retained in the unaided memory of its personnel, provided that this does not permit disclosure of Confidential Information or use of the other party's trade secrets or patents.

12. Governing law

This Agreement is governed by the laws of the State of Delaware, USA, without regard to conflict of laws principles. The parties submit to the non-exclusive jurisdiction of the state and federal courts located in Delaware.

13. Equitable relief; general

Each party acknowledges that breach may cause irreparable harm for which damages are inadequate and that the other party may seek injunctive relief. This Agreement is the entire agreement on its subject matter and may be amended only in a writing signed by both parties.

Signed: Dr. Matthias Weber, Managing Director, Veridian Manufacturing GmbH. Signed: Priya Venkataraman, CEO, Kestrel Labs, Inc.